

23STCV22021 23STCV22021

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-06-25

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Case Number: 23STCV22021 Hearing Date: June 25, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

23STCV22021

LANISHA

SIMS vs TRINITY MANAGEMENT

June

25, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO VACATE DISMISSAL.

RULING:

The Court continues the Motion
hearing to July 24, 2026, at 8:30 a.m., in Department 311.

Within 5 days Plaintiff
shall file Proof of Service showing defense counsel's address of record.

I.

BACKGROUND

On September 13, 2023, LANISHA
SIMS (Plaintiff) filed a Complaint against TRINITY MANAGEMENT (Defendant),
listing Causes of Action for:

1.

NEGLIGENT MAINTENANCE OF PREMISES [Civ. Code §§ 1941.1; 1714(a); 3333]; and

2.

BREACH OF WARRANTY OF HABITABILITY.

Plaintiff alleges that Defendant
leased an uninhabitable apartment at 8325 S. Western Ave, Los Angeles, having mold,
rat and cockroach infestation, plumbing issues, flooding, leaks, broken walls
and deteriorated carpet.

On September 2, 2025, the
Court entered Dismissal pursuant to an unopposed Order to Show Cause regarding
Settlement.

On January 13, 2026, Plaintiff
filed the Motion to Vacate Dismissal entered September 2, 2025, on grounds that
the parties never completed the settlement for \$5,000.00, and Plaintiff's
counsel failed to attend the hearing because of staff error.

No Opposition has been
filed, possibly due to lack of notice at the address of record.

II.

LEGAL STANDARD

To constitute grounds for

relief under Code of Civil Procedure section 473, generally attorneys' exceptional workload must be accompanied by a factor outside attorneys' control in an unmanageable situation, such as mistakes of clerical staff such as failure to calendar leading to failure to appear. (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1424.) Generally, regarding miscalendaring, excusable neglect and a basis for relief have been found where an attorney relies on an employee or calendaring system to calendar deadlines, and the employee or system fails. (*Renteria v. Juvenile Justice, Dept. of Corrections & Rehabilitation* (2006) 135 Cal.App.4th 903, 911.) Attorneys' or staff's calendaring errors can support relief, if excusable under appropriate circumstances. (*Comunidad en Accion v. Los Angeles City Council* (2013) 219 Cal.App.4th 1116, 1133-1135 ["trial court abused its discretion in denying ... relief from default. The one-week delay in requesting a hearing was an isolated mistake in an otherwise vigorous and thorough presentation of ... claims.... [T]he lead attorney made a single calendaring error, not a series of errors resulting from disorganization."].)

III.

ANALYSIS

Plaintiff moves to vacate dismissal caused by staff miscalendaring, leading to counsel's failure to appear at the OSC re dismissal after a settlement that the parties never completed.

A mailing or proof of service lacking a fully correct address is ineffective where it "resulted, or could have resulted, in a lack of actual notice...." (*Adaimy v. Ruhl* (2008) 160 Cal.App.4th 583, 587. Accord, *Moghaddam v. Bone* (2006) 142 Cal.App.4th 283, 288 ["In the absence of proof notice was actually received, the ... failure to use the correct ZIP Code invalidates what would have otherwise been sufficient notice."]. See also *Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 509-510 [where notice was not mailed to the "office address as last given by that person on any document filed in the cause," per Code Civ. Proc., § 1013, subd. (a), notice was ineffective, and order entered was void].)

On February 5, 2024, Defendant filed the last address of record as being in Agora Hills, which the Clerk also used on the Certificate of Mailing, filed July 29, 2025. However,

the instant Proof of Service by Mail, attached to the Motion, states another address in Los Angeles.

Therefore, the Court requires proof that Defendant had notice and an opportunity to oppose.

IV.

CONCLUSION

The Court continues the Motion, for a corrected Proof of Service.